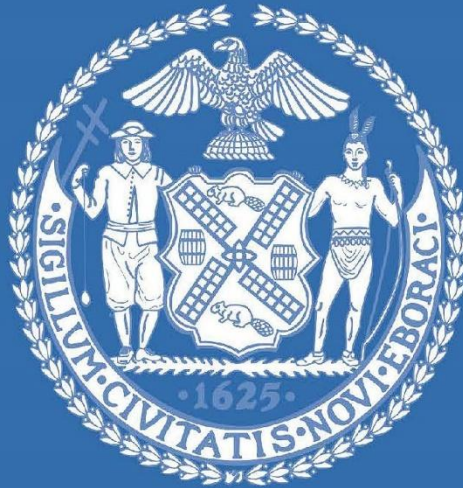


CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor DR. MOHAMMAD KHALID, Interim Chair JONATHAN DARCHE, Esq. Executive Director



Administrative Prosecution Unit

2nd Quarter 2025 Report

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ADMINISTRATIVE PROSECUTION UNIT BACKGROUND

When the Board substantiates a misconduct allegation and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case. A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

INTRODUCTION

This report will address the following matters: (i) trial verdicts issued by an Assistant Deputy Commissioner of Trials ("ADCT"); (ii) the treatment of Administrative Prosecution Unit ("APU") pleas by the Police Commissioner ("PC"); (iii) the retention of cases under Provision Two of the April 2, 2012, Memorandum of Understanding ("MOU"); (iv) cases administratively closed by the Police Commissioner; (v) cases closed due to the statute of limitations ("SOL"); (vi) the size of the APU's docket; (vii) the time to serve Charges and Specifications on Respondents; and (viii) the discipline concurrence rate.

The report contains information concerning the following case closures in the second quarter of 2025: five (5) trial verdicts, forty-seven (47) pleas, eleven (11) retained cases, ten (10) PC administratively closed cases, and zero (0) APU administratively closed cases. Finally, it includes information regarding the discipline and concurrence rates for the quarter which stand at 87% and 71% respectively.

SECTION I: TRIALS

At the conclusion of an administrative trial, the presiding ADCT renders a finding of guilty or not guilty on each of the Charges and Specifications against the member(s) of service ("MOS").¹ For guilty verdicts, the ADCT recommends a penalty for each member of service involved in the case and the Police Commissioner either approves, modifies, or reverses the verdict and recommended penalty.² There is no penalty recommendation for not guilty verdicts. In the second quarter of 2025, the verdicts for five (5) APU trials were finalized. The verdicts can be found below.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202100516 Read Closing Report Here	DT2 Anthony Wright	1. Force - struck the Victim with a blunt instrument. 2. Force - used physical force against the Victim.	Fifteen (15) days' suspension	The ADCT rendered a guilty verdict on one (1) charge and dismissed one (1) charge. The Police Commissioner disapproved the guilty verdict and imposed no penalty. Read Final Documents Here
202102531 Closing Report Will be Available Upon Closure of all related APU Cases	DI Chase Maneri	1. Force - used physical force against the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	Termination	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here

¹ The APU treats each officer against whom an allegation is substantiated as a separate "case." As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

² As the final arbiter of discipline, the Police Commissioner can modify the ADCT penalty and/or reverse a verdict.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202106303 Read Closing Report Here	PO John Gonzalez	1. Force - struck an individual with a vehicle. 2. Force - struck the Victim with a vehicle. 3. Abuse of Authority - damaged the Victim's property.	One (1) year Dismissal Probation	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202200678 Read Closing Report Here	DTS Alex Viera	1. Force - hit the Victim against an object. 2. Force - used physical force against the Victim.	Fifteen (15) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202208709 Closing Report Will be Available Upon Closure of all related APU Cases	PO Osvaldo Nunez	1. Force - used physical force against the Victim. 2. Abuse of Authority - interfered with the Victim's use of a recording device.	Twenty (20) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here

SECTION II: PLEAS

In lieu of a trial, the MOS can reach a plea agreement with the APU. This agreement must be approved by both the ADCT and the Police Commissioner. The APU uses several factors to determine plea recommendations, including, but not limited to, MOS length of service, MOS rank, MOS disciplinary history, the facts of the case, the strength of the case, vulnerability of the victim, the extent of any injury, the number of complainants, precedent from cases involving analogous charges, and the delineated penalty categories from the New York City Police Department's ("NYPD") Disciplinary Matrix. In the second quarter of 2025, the APU finalized forty-seven (47) plea agreements.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
201904870 Closing Report Will be Available Upon Closure of all related APU Cases	PO Jean Germosen	1. Abuse of Authority - entered Victim 1's home. 2. Abuse of Authority - threatened to arrest Victim 2. 3. Abuse of Authority - threatened to arrest Victim 3. 4. Force - restricted Victim 2's breathing. 5. Force - used physical force against Victim 2. 6. Force - used physical force against Victim 3. 7. Discourtesy - spoke discourteously to Victim 1. 8. Discourtesy - spoke discourteously to Victim 2. 9. Discourtesy - spoke discourteously to Victim 3.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
201907670 Read Closing Report Here	SGT Matthew Lieberman	1. Abuse of Authority - arrested the Victim. 2. Abuse of Authority - damaged the Victim's property. 3. Discourtesy - acted discourteously toward the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
201909287 Read Closing Report Here	LT Charles Barhold	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - made remarks to the Victim based upon a mental disability.	The officer pled guilty and accepted training. The Police Commissioner disapproved the plea and modified the penalty to Command Discipline A with one (1) day vacation forfeiture Read Final Documents Here
202003715 Read Closing Report Here	LT Sindy Sanchez	1. Force - used pepper spray against individuals.	The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline with five (5) days' vacation forfeiture. Read Final Documents Here
202003731 Read Closing Report Here	SGT Matthew Peters	1. Force - used physical force against an individual. 2. Force - used physical force against the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202003834 Closing Report Will be Available Upon Closure of all related APU Cases	PO Anthony Sclafani	1. Force - used physical force against the Victim. 2. Abuse of Authority - interfered with the Victim's use of a recording device.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline A with five (5) days' vacation forfeiture <u>Read Final Documents Here</u>
202004307 <u>Read Closing Report Here</u>	PO Frank Fiorenza	3. Force - used physical force against the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to five (5) days' vacation forfeiture. <u>Read Final Documents Here</u>
202004326 <u>Read Closing Report Here</u>	SGT DS Keith Bryan	1. Force - used pepper spray against Victim 1. 2. Force - used pepper spray against individuals. 3. Force - used pepper spray against Victim 2.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. <u>Read Final Documents Here</u>

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202006684 Read Closing Report Here	DT3 Delton Ng	1. Abuse of Authority - failed to explain to Victim 1 the reason for a law enforcement activity. 2. Abuse of Authority - failed to provide Victim 1 with a business card. 3. Abuse of Authority - frisked Victim 1. 4. Abuse of Authority - searched the vehicle in which Victim 1 and Victim 2 were occupants. 5. Untruthful Statement - provided a misleading official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202007510 Read Closing Report Here	DT3 Juan Rodriguez	1. Force - used physical force against the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202100434 Read Closing Report Here	PO Matthew Melendez	1. Force - used physical force against an individual. 2. Discourtesy - spoke discourteously to an individual.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202100434 Read Closing Report Here	PO Chandrapaul Temal	1. Force - used physical force against an individual. 2. Discourtesy - spoke discourteously to an individual.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202100617 Read Closing Report Here	SGT Adan Suazorodas	1. Force - struck Victim 1 with a baton. 2. Abuse of Authority - interfered with Victim 3's use of a recording device.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202100617 Read Closing Report Here	SGT Adnan Hussain	1. Force - struck Victim 2 with a baton. 2. Force - used physical force against Victim 2. 3. Abuse of Authority - interfered with Victim 3's use of a recording device.	The officer pled guilty and accepted nineteen (19) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline B with ten (10) days' vacation forfeiture. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202101162 Read Closing Report Here	PO Enoch Choi	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - made sexually suggestive remarks to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202101162 Read Closing Report Here	PO Matthew Kelly	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - made sexually suggestive remarks to the Victim. 3. Abuse of Authority - searched the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202101702 Closing Report Will be Available Upon Closure of all related APU Cases	PO Rahat Rumel	1. Abuse of Authority - In front of the 63rd Precinct stationhouse, did not process the Victim's complaint regarding an officer.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202102950 Read Closing Report Here	PO Alberto Leonardo	1. Discourtesy - spoke discourteously to an individual.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202103501 Read Closing Report Here	PO Samuel Maria	1. Abuse of Authority - did not process the Victim's complaint regarding an officer.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202103501 Read Closing Report Here	PO Jia Lau	1. Abuse of Authority - did not process the Victim's complaint regarding an officer.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202103831 Closing Report Will be Available Upon Closure of all related APU Cases	PO Sergio Castillo	1. Abuse of Authority - failed to provide Individual 2 with a business card. 2. Abuse of Authority - failed to provide Victim 1 with a business card. 3. Abuse of Authority - frisked Individual 2. 4. Abuse of Authority - frisked Victim 1. 5. Abuse of Authority - questioned Victim 2. 6. Abuse of Authority - questioned Individual 2. 7. Abuse of Authority - questioned Victim 1 8. Discourtesy - spoke discourteously to Victim 2.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202105455 Read Closing Report Here	PO John Peloso	1. Force - used physical force against the Victim.	The officer pled guilty and accepted ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202205456. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106260 Closing Report Will be Available Upon Closure of all related APU Cases	PO Jennifer Font	1. Abuse of Authority - detained Victim 1. 2. Abuse of Authority - seized Victim 2's property. 3. Abuse of Authority - searched Victim 2's home. 4. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106260 Closing Report Will be Available Upon Closure of all related APU Cases	PO Jaclyn Hughes	1. Abuse of Authority - detained Victim 1. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202106260 Closing Report Will be Available Upon Closure of all related APU Cases	PO Adriel Bou	1. Abuse of Authority - detained Victim 1. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202200624 Closing Report Unavailable in Accordance with Civil Rights Law Section 50-b	DTS Julio Martinez	1. Abuse of Authority - searched the vehicle in which Victim 1, Victim 2, and Victim 3 were occupants. 2. Abuse of Authority - threatened Victim 2 with the use of force.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202200964 Read Closing Report Here	PO Fei Lin	1. Abuse of Authority - threatened to arrest the Victim. 2. Discourtesy - acted discourteously toward the Victim. 3. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202202283 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Michael Phipps	- Discourtesy - spoke discourteously to the Victim. - Discourtesy - spoke discourteously to the Victim. - Discourtesy - spoke discourteously to the Victim. - Offensive Language - made offensive remarks to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Cases Nos. 202207360 and 202305394. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202202341 Read Closing Report Here	DT3 Thomas Napolitano	Untruthful Statement - provided a misleading official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202203671 Read Closing Report Here	PO Joesne Araujopassos	- Force - used physical force against the Victim. - Abuse of Authority - threatened the Victim with the use of force. - Discourtesy - spoke discourteously to the Victim. - Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted fifteen (15) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202204404 ³ Read Closing Report Here	PO Christina O'Connor	1. Force - pushed the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The Police Commissioner disapproved the plea and modified the penalty to Command Discipline A with five (5) days' vacation forfeiture. Read Final Documents Here
202204834 Read Closing Report Here	DT3 Craig Mcgrath	3. Abuse of Authority - threatened to arrest the Victim. 4. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202205456 Read Closing Report Here	PO John Peloso	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - made remarks to the Victim based upon the gender of the Victim.	The officer pled guilty and accepted ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202105455. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

³ This case was originally reported as closed in Q1 2024 under the category of retained with discipline. The officer refused the PC imposed discipline and the case was returned to APU for prosecution.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202206365 Read Closing Report Here	SGT Smithu Samuel	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - failed to provide the Victim with a business card. 3. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202206671 Read Closing Report Here	PO Ikenna Akobundu	1. Force - used physical force against the Victim. 2. Abuse of Authority - interfered with the Victim's use of a recording device.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to Command Discipline B with ten (10) days' vacation forfeiture. Read Final Documents Here
202207360 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Michael Phipps	1. Force - used a taser on Victim 1. 2. Abuse of Authority - stopped Victim 1 3. Abuse of Authority - threatened Victim 1 with the use of force. 4. Abuse of Authority - entered Victim 2's home.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Cases Nos. 202202283 and 202305394. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202300672 Read Closing Report Here	SGT Carlos Barahona	1. Abuse of Authority - threatened an individual with the use of force. 2. Discourtesy - spoke discourteously to an individual. 3. Discourtesy - spoke discourteously to the Victim. 4. Offensive Language - made offensive remarks to the Victim.	The officer pled guilty and accepted ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and modified the penalty to Command Discipline B with five (5) days' vacation forfeiture. Read Final Documents Here
202301380 Read Closing Report Here	PO Haroon Hussain	1. Abuse of Authority - threatened to remove the Victim to the hospital. 2. Discourtesy - acted discourteously toward the Victim.	The officer pled guilty and training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202301513 Read Closing Report Here	LT Gabriel Cuevas	1. Force - used physical force against Victim 1. 2. Abuse of Authority - failed to provide Victim 2 with a business card. 3. Abuse of Authority - frisked Victim 1. 4. Abuse of Authority - stopped Victim 1. 5. Discourtesy - spoke discourteously to Victim 1.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Cases No. 202304213. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202302703 Read Closing Report Here	PO John Ogunmoyin	1. Force - used physical force against Victim 1. 2. Force - used physical force against Victim 2.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here
202304213 Closing Report Will be Available Upon Closure of all related APU Cases	LT Gabriel Cuevas	3. Force - used physical force against the Victim. 4. Abuse of Authority - failed to provide the Victim with a business card. 5. Discourtesy - gestured discourteously toward the Victim. 6. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Cases No. 202301513. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202305261 Closing Report Will be Available Upon Closure of all related APU Cases	PO Jesse Lawrence	1. Abuse of Authority - improperly used his body-worn camera. 2. Abuse of Authority - threatened to seize the Victim's property.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202305267 Read Closing Report Here	SGT Carlos Herrera	1. Abuse of Authority - interfered with the Victim's use of a recording device. 2. Abuse of Authority - threatened to arrest the Victim. 3. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here
202305305 Read Closing Report Here	PO Mario Valencia	1. Force - at the Transit District 33 stationhouse used physical force against the Victim. 2. Force - Outside the Euclid Avenue A train station used physical force against the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here
202305394 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Michael Phipps	3. Discourtesy - spoke discourteously to an individual. 4. Offensive Language - made remarks to an individual based upon the perceived sexual orientation of an individual.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Cases Nos. 202202283 and 202207360. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202308033 Read Closing Report Here	DT2 Michael Sinclair	1. Abuse of Authority – entered the Victim’s home. 2. Abuse of Authority - failed to obtain language interpretation services for the Victim. 3. Abuse of Authority - searched the Victim’s home.	The officer pled guilty and accepted Command Discipline A with five (5) days’ vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here
202308956 Read Closing Report Here	PO Scott Isaacs	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim. 3. Offensive Language - made remarks to the Victim based upon the gender of the Victim.	The officer pled guilty and accepted Command Discipline A with five (5) days’ vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty Read Final Documents Here

SECTION III: RETAINED CASES

The Police Commissioner can retain a case, which means that the case is removed from the APU, in accordance with Provision Two of the MOU,⁴ which states that:

in those limited circumstances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

After a case is retained, the Police Commissioner can decide whether or not to impose discipline on an officer. In the second quarter of 2025, the Police Commissioner retained eleven (11) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202202367 Read Closing Report Here	PO Christopher Neun	1. Force - used physical force against the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with ten (10) days' vacation forfeiture. Read Final Documents Here
202301786 Read Closing Report Here	SGT Sadique Cottlehaddaway	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - refused to provide his command assignment to the Victim. 3. Abuse of Authority - refused to provide his shield number to an individual. 4. Abuse of Authority - stopped the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with six (6) days' vacation forfeiture. Read Final Documents Here

⁴ https://www.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202309830 Read Closing Report Here	PO Joseph Abate	1. Force - used physical force against the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202310440 Read Closing Report Here	SGT Sandeep Thomas	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture and training. Read Final Documents Here
202310448 Read Closing Report Here	PO Jared Alexander	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - spoke offensively regarding the Victim's actual or perceived disability.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture and training. Read Final Documents Here
202310494 Read Closing Report Here	DT3 Joseph Walsh	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - frisked the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - stopped the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with one (1) day vacation forfeiture. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202310971 Read Closing Report Here	PO Mosa Parris	1. Abuse of Authority - took (a) photograph(s)/recording(s) of the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202310999 Read Closing Report Here	PO Vito Scalici	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - made offensive remarks to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture and training. Read Final Documents Here
202311490 Read Closing Report Here	PO Michele Carrieri	1. Abuse of Authority - took a recording of the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. Read Final Documents Here
202311532 Closing Report Will be Available Upon Closure of all related APU Cases	PO Casey Haft	2. Abuse of Authority - entered the Victim's home. 3. Abuse of Authority - improperly used her body-worn camera.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with five (5) days' vacation forfeiture. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202400049 Read Closing Report Here	PO Kevin Coogan	1. Discourtesy - spoke discourteously to the Victim. 2. Offensive Language - made remarks to the Victim based upon the gender of the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with training. Read Final Documents Here

SECTION IV: POLICE COMMISSIONER ADMINISTRATIVELY CLOSED CASES

The Police Commissioner will administratively close a case when an officer resigns, retires, or is disciplined by an internal NYPD process. Such cases require no further action from the APU. In the second quarter of 2025, the Police Commissioner administratively closed ten (10) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
201900918 Read Closing Report Here	DTS Jeremiah Williams	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Abuse of Authority - strip-searched the Victim.	Officer retired.
202003958 Read Closing Report Here	PO Brandon Gentz	3. Force - struck the Victim with a baton. 4. Discourtesy - spoke discourteously to the Victim. 5. Discourtesy - spoke discourteously to the Victim.	Adjudicated at Boro level – issued a warning and admonishment.
202200511 Read Closing Report Here	PO Alisa Bajraktarevic	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim. 3. Discourtesy - spoke discourteously to the Victim.	The department terminated the officer.
202204496 Read Closing Report Here	LT Henry Daverin	1. Abuse of Authority - failed to provide Victim 1 with a business card. 2. Abuse of Authority - failed to provide Victim 2 with a business card. 3. Abuse of Authority – frisked Victim 2.	Officer retired.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202303761 Closing Report Will be Available Upon Closure of all related APU Cases	DTS Ryan Coffaro	1. Abuse of Authority - entered the Victim's workplace. 2. Abuse of Authority - failed to activate his body-worn camera. 3. Abuse of Authority - frisked an individual.	Officer retired.
202304627 Read Closing Report Here	PO Christopher Sanchez	1. Abuse of Authority - improperly used his body-worn camera. 2. Abuse of Authority - threatened an individual with the use of force.	The department issued its own charges against the officer.
202311282 Read Closing Report Here	SGT Calvin Black	1. Abuse of Authority - engaged in a relationship beyond the scope of official duties with the Victim. 2. Abuse of Authority - improperly obtained the Victim's identifying information from an official police document. 3. Abuse of Authority - made sexually suggestive remarks to the Victim. 4. Abuse of Authority - propositioned the Victim. 5. Abuse of Authority - made sexually suggestive remarks to the Victim. 6. Abuse of Authority - propositioned the Victim.	The department issued its own charges against the officer.
202311898 Read Closing Report Here	PO Guo Chu	1. Force - used physical force against an individual. 2. Abuse of Authority - failed to activate his body-worn camera.	The department issued its own charges against the officer.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202401453 Read Closing Report Here	DTS Matthew Coffaro	1. Abuse of Authority - frisked the Victim. 2. Abuse of Authority - issued an unlawful summons to the Victim. 3. Abuse of Authority - searched the Victim. 4. Abuse of Authority - threatened to arrest the Victim.	Officer resigned.
202412294 Read Closing Report Here	PO Harley Greco	1. Force - kicked the Victim. 2. Force - pulled the Victim's hair.	The department issued its own charges against the officer.

SECTION V: APU ADMINISTRATIVELY CLOSED CASES

The SOL is the 18-month timeframe within which a disciplinary proceeding must commence against an officer.⁵ Unless the case falls under the crime exception, once the SOL period elapses, a case may not proceed and will be closed without further action. In the second quarter of 2025, the APU administratively closed zero (0) cases for SOL reasons.

⁵ Under New York Civil Service Law § 75(4), a disciplinary proceeding cannot be commenced more than 18 months after the incident, but that time limitation does not apply where the alleged misconduct, as described in the Charges and Specifications, would constitute a crime.

The service of Charges and Specifications on a MOS is considered a commencement of a disciplinary proceeding.

SECTION VI: THE APU DOCKET

The APU's docket increased in the second quarter of 2025 compared to the first quarter of 2025. The sustained docket size is attributable to the increased number of Charges and Specifications recommended by the CCRB's Board pursuant to the Disciplinary Matrix and the overall increase in the number of complaints received by the Agency.

Cases in Open Docket					
Period	Start of Quarter	Received During Quarter	Closed During Quarter	End of Quarter	Growth
3 rd Quarter 2024	703	106	114	695	-1.1%
4 th Quarter 2024	695	117	66	746	7.3%
1 st Quarter 2025	746	114	57	803	7.6%
2 nd Quarter 2025	803	142	173	871	8.6%

SECTION VII: SERVICE OF RESPONDENTS

The average wait time for Respondents to be served remained relatively the same between the first and second quarters of 2025.

Time to Serve Respondents			
Period	Number of Respondents Served	Average Length to Serve Respondents	Average Length to Serve Respondents (Business Days)
3 rd Quarter 2024	106	23	16
4 th Quarter 2024	108	18	13
1 st Quarter 2025	99	19	13
2 nd Quarter 2025	101	20	14

SECTION VIII: CONCURRENCE AND DISCIPLINE

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind. Certain “Not Adjudicated” case outcomes, such as when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate.

Q2 2025 APU Concurrence and Discipline			
Discipline Count	55	Concurrence Count	45
No Discipline Count	8	Non-Concurrence Count	18
Not Adjudicated Count	10	Not Adjudicated Count	10
Discipline %	87%	Concurrence %	71%